STATE OF MINNESOTA | DISTRICT COURT

COUNTY OF HENNEPIN | FOURTH JUDICIAL DISTRICT
Case Type: Contract

Yibiao Lu and Jie Hu, Plaintiffs, vs. Fire Insurance Exchange, by and through its attorney-in-fact Fire Underwriters Association, doing business as Farmers Insurance, Defendant.	Case Type: Contract Court File No. 27-CV-26-11606 Judge: Jamie Anderson **DEFENDANT'S FIRST SET OF REQUESTS FOR ADMISSION TO PLAINTIFFS**

TO: Plaintiffs Yibiao Lu and Jie Hu, 17756 George Moran Drive, Eden Prairie, Minnesota 55347:

NOTICE AND DEMAND

PLEASE TAKE NOTICE that pursuant to Rule 36 of the Minnesota Rules of Civil Procedure, Defendant Fire Insurance Exchange ("FIE"), hereby requests that Plaintiffs make the following admissions for the purpose of this action only and subject to all pertinent objections to admissibility which may be interposed at trial. Unless objected to or denied within thirty (30) days of the date of these Requests, the matters will be deemed admitted.

REQUEST FOR ADMISSION NO. 1: Admit that on August 13, 2024, Plaintiffs notified FIE of a hail/wind claim (Claim # 7007986837-1-1), which they alleged occurred on July 13, 2024 ("2024 Claim").

REQUEST FOR ADMISSION NO. 2: Admit that on August 3, 2025, Plaintiffs invoked the appraisal clause of the policy due to the parties' inability to reach an agreement on the amount of loss for the Plaintiffs 2024 Claim.

REQUEST FOR ADMISSION NO. 3: Admit that attached as "Exhibit A" is a true and correct copy of Plaintiffs' Demand for Appraisal, dated August 3, 2025.

REQUEST FOR ADMISSION NO. 4: Admit that the Demand for Appraisal attached as Exhibit A states, in part, that "We have selected John Foster as our appraiser" and provides Mr. Foster's telephone number and email.

REQUEST FOR ADMISSION NO. 5: Admit that Plaintiffs' Demand for Appraisal attached as Exhibit A identifies the items to be considered by the appraisal panel to include 1) Windows; 2) Siding (repaint); and 3) Siding (R&R).

REQUEST FOR ADMISSION NO. 6: Admit that Plaintiff Yibiao Lu signed Plaintiffs' Demand for Appraisal attached hereto as Exhibit A.

REQUEST FOR ADMISSION NO. 7: Admit that attached as "Exhibit B" is a true and correct copy of Plaintiffs' Appraiser Retainer Agreement concerning Plaintiffs' 2024 Claim.

REQUEST FOR ADMISSION NO. 9: Admit that Exhibit B states, in part, "I/we retain John Foster to serve as the appraiser on the above-mentioned claim for the agreed-on sum of $2,200.00."

REQUEST FOR ADMISSION NO. 10: Admit that Exhibit B states, in part:

"We agree that a representative (not the appraiser) will present the claim to the appraisal panel. This presentation includes but is not limited to:

- Documentation detailing the specific items already agreed upon by the insured and insurer
- Documentation detailing the specific items in dispute
- Other documentation (photographs, building official letters, manufacturer specifications, engineering reports, Itel report, weather data, and any other document believed to be helpful for your position).-
  Professional testimony detailing the reasoning supporting the scope and value of the claim. -If the dispute involved the date of loss, it is necessary to provide the weather report. - Preparation on the day of appraisal by marking all damage."

REQUEST FOR ADMISSION NO. 11: Admit that Plaintiff Yibiao Lu signed Exhibit B.

REQUEST FOR ADMISSION NO. 12: Admit that the document attached hereto as "Exhibit C" is a true and correct copy of the Appraisal Award concerning Plaintiffs' 2024 Claim.

REQUEST FOR ADMISSION NO. 13: Admit that the Appraisal Award attached as Exhibit C identified the item Windows F1.7 B1.2 to have a replacement cost value of $12,800 and actual cash value of $6,400 for damage caused by hail.

REQUEST FOR ADMISSION NO. 14: Admit that the Appraisal Award attached as Exhibit C was signed by Plaintiffs' appraiser John Foster on September 12, 2025.

REQUEST FOR ADMISSION NO. 14: Admit that the Appraisal Award attached as Exhibit C is signed by the Umpire Wade Roos on September 12, 2025.

REQUEST FOR ADMISSION NO. 15: Admit that the Appraisal Award attached as Exhibit C is binding on Plaintiffs and FIE as to the amount of the loss to the Windows identified on Exhibit C.

REQUEST FOR ADMISSION NO. 16: Admit that the Appraisal Award attached as Exhibit C is binding on Plaintiffs and FIE as to the cause of the loss/damage to the Windows identified on Exhibit C.

REQUEST FOR ADMISSION NO. 16: Admit that the Appraisal Award attached as Exhibit C is binding on both Plaintiffs and Defendant as to the amount of loss and the cause of loss identified therein.

REQUEST FOR ADMISSION NO. 17: Admit that Plaintiffs, in their Complaint, admitted that the Appraisal Award is binding.

REQUEST FOR ADMISSION NO. 18: Admit that Plaintiffs filed a complaint with the Minnesota Department of Commerce as related to Defendant's handling of Plaintiffs' 2024 Claim.

REQUEST FOR ADMISSION NO. 19: Admit that The Minnesota Department of Commerce did not take any action against Defendant as a result of Plaintiffs' complaint to the Minnesota Department of Commerce.

REQUEST FOR ADMISSION NO. 20: Admit that Plaintiffs filed a complaint with the Minnesota Attorney General as related to Defendant's handling of Plaintiffs' 2024 Claim of alleged hail/wind loss.

REQUEST FOR ADMISSION NO. 21: Admit that the Minnesota Attorney General did not take any action against Defendant as a result of Plaintiffs' complaint to the Minnesota Attorney General.

KENNEDY LAW FIRM P.C.

Dated: October 26, 2026

By: /s/ Mary J. Baskfield
Kevin J. Kennedy (#193872)
Mary J. Baskfield (#0314572)
7616 Currell Blvd., Suite 270
Woodbury, MN 55125
Telephone: 651-256-5000
Em: kkennedy@kennedylf.com
Em: mbaskfield@kennedylf.com
Counsel for Defendant Fire Insurance Exchange

DEMAND FOR APPRAISAL

Date: 8/3/2025
Insurer: Farmers
Insurer's Claim Representative: Nic Braun

Regarding:
Insured: Yibiao Lu
Policy #: 0980554965
Claim #: 700798 6837-1-1
Date of Loss: 07/13/2024
Loss Address: 17756 George Moran Dr., Eden Prairie, MN 55347

This letter notifies you that we disagree with the amount of loss on the above-referenced claim. As a result of our inability to reach a mutually agreeable settlement, we are invoking the appraisal clause of our policy.

The items to be considered by the appraisal panel:

1. Windows
2. Siding (repaint)
3. Siding (R&R)
4.
5.
6.

We have selected John Foster as our appraiser, who can be reached at:

Phone: 715-417-2307
Email: jjlmds@gmail.com

We appreciate your prompt attention to this matter. Please notify us and our appraiser regarding your appraiser, including contact information for that individual, so the appraisal process can begin as soon as possible.

If Farmers elects not to participate in this appraisal or fails to elect an appraiser within 20 days, the insured is notifying the insurer of the intent to involve the court in electing an appraiser and/or umpire.

Sincerely,

Insured's Signature:
Insured's Printed Name: Yibiao Lu

EXHIBIT A

Appraiser Retainer Agreement

Date: 8/3/2025

From: Pure Construction

Contact person and phone number: Zach Sexe: 952-292-8004

Insured: Yibiao Lu

Insurance Company: Farmers

Policy #: 098055496 5

Claim #: 7007986837-1-1

Date of Loss: 07/13/2024

Cause: Hail/Wind

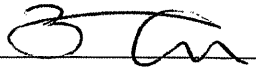
Loss Address: 17756 George Moran Dr, Eden Prairie, MN 55347

Email: bill_y_lu@yahoo.com

I/ we retain John Foster to serve as the appraiser on the above-mentioned claim for the agreed-on sum of $2,200.00.

I/We agree to pay ½ of the umpire's fee according to our policy conditions – this fee will be paid upon notification of the umpire being appointed.

We agree that a representative (not the appraiser) will present the claim to the appraisal panel. This presentation includes but is not limited to:
- Documentation detailing the specific items already agreed upon by the insured and insurer
- Documentation detailing the specific items in dispute
- Other documentation (photographs, building official letters, manufacturer specifications, engineering reports, Itel report, weather data, and any other document believed to be helpful for your position). - Professional testimony detailing the reasoning supporting the scope and value of the claim. - If the dispute involves the date of loss, it is necessary to provide the weather report. - Preparation on the day of appraisal by marking all damage.
- **All documentation should be provided to the appraisal panel 2 weeks prior to the appraisal date**

Insured's Signature: 

Printed Name: Yibiao Lu

EXHIBIT B

Appraisal Award

Insured	
Name:	Yibiao Lu
Street:	17756 George Moran Dr
City:	Eden Prairie, MN 55347
Claim #:	7007986837-1-1

Insurance Companay	
Name:	Farmers Insurance
Street:	P.O. Box 268994
City:	Oklahoma City, OK 73126-8994
Policy #:	#0980554965

Loss Date: 7/13/2024 Loss Cause: Hail

Property Description/Address: 17756 George Moran Dr. Eden Prairie, MN 55347

This acknowledges that **Wade Roos** has been appointed to act as umpire in accord with the policy conditions.

Appraiser: _____ Date: 9-12-2025

Appraiser: Gregory Tomes Date: 9-12-2025

Item (for example roof, siding, windows..	Replacement Cost Value	Actual Cash Value	Causation
Siding & Paint	0-	0-	**Hail**
Windows F1.T B1.2	12,800-	6,400-	**Hail**
Debris	0-	0-	**Hail**
Permit is to be Paid When Incurred			
Total:	12,800-	6,400-	

We certify the amounts established above for the described loss.

Appraiser: _____ Date: 9-12-2025 John Foster

Appraiser: _____ Date: _____ Greg Tomes

Umpire: _____ Date: 9-12-2025 Wade Roos

(A minimum of two signatures required)

Appraisal award is subject to all policy terms and conditions including, but not limited to, the deductable(s) and replacement cost provisions. The deliberation of the Appraisal Panel is confidential and exempt from depositions or suit in the event the agreement is challanged, or a bad faith claim or breach of contract is filed. Furthermore, to the maximum extent permitted by law, no party will assert any claims against the named Appraisers or the named Umpire or their respective firms, seeking to hold them or their firms liable for any act or omission in preforming their duties as an Appraiser or Umpire.

EXHIBIT C